Customary International Humanitarian Law

INTERNATIONAL COMMITTEE OF THE RED CROSS

CUSTOMARY INTERNATIONAL HUMANITARIAN LAW

VOLUME I

RULES

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that commanders are responsible for the war crimes committed pursuant to their orders.[31] Further practice is contained in official statements.[32]

The UN Security Council, UN General Assembly, UN Secretary-General and UN Commissions of Experts Established pursuant to Security Council Resolutions 780 (1992) and 935 (1994) have recalled this rule.[33]

This rule has been reaffirmed in various cases before the International Criminal Tribunals for the Former Yugoslavia and for Rwanda.[34]

While some practice refers specifically to orders issued by commanders,[35] or superiors,[36] other practice refers more generally to orders issued by any person.[37] International case-law has held, however, that while no formal

[31] See, e.g., Argentina, National Court of Appeals, *Military Junta case* (*ibid.*, § 519); Canada, Military Court at Aurich, *Abbaye Ardenne case*, Statement by the Judge Advocate (*ibid.*, § 520); Canada, Court Martial Appeal Court, *Seward case* (*ibid.*, § 521); Croatia, District Court of Zadar, *Perišić and Others case* (*ibid.*, § 522); Germany, Reichsgericht, *Dover Castle case* (*ibid.*, § 523); United States, Military Commission at Rome, *Dostler case* (*ibid.*, § 524); United States, Federal Court of Florida, *Ford v. García case* (*ibid.*, § 526).

[32] See, e.g., the practice of Slovenia (*ibid.*, § 531), United Kingdom (*ibid.*, §§ 532–533) and United States (*ibid.*, §§ 534–535).

[33] See, e.g., UN Security Council, Res. 670 (*ibid.*, § 536), Res. 771 (*ibid.*, § 537), Res. 780 (*ibid.*, § 538), Res. 794 (*ibid.*, § 539), Res. 808 (*ibid.*, § 540), Res. 820 (*ibid.*, § 541) and Res. 1193 (*ibid.*, § 542); UN Security Council, Statements by the President (*ibid.*, §§ 543–546); UN General Assembly Res. 50/193 (*ibid.*, § 547); UN Secretary-General, Report pursuant to Paragraph 2 of Security Council Resolution 808 (1993) (*ibid.*, § 548); UN Commission of Experts Established pursuant to Security Council Resolution 780 (1992), Final report (*ibid.*, § 549); UN Commission of Experts Established pursuant to Security Council Resolution 935 (1994), Final report (*ibid.*, § 550).

[34] See, e.g., ICTR, *Akayesu case*, Judgement (*ibid.*, § 553) and *Kayishema and Ruzindana case*, Judgement (*ibid.*, § 554); ICTY, *Martić case*, Review of the Indictment (*ibid.*, § 556), *Karadžić and Mladić case*, Review of the Indictments (*ibid.*, § 557), *Rajić case*, Review of the Indictment (*ibid.*, § 558), *Delalić case*, Judgement (*ibid.*, § 559), *Blaškić case*, Judgement (*ibid.*, § 560), *Kordić and Čerkez case*, Judgement (*ibid.*, § 561) and *Krstić case*, Judgement (*ibid.*, § 562).

[35] See, e.g., the military manuals of Australia (*ibid.*, § 474), Cameroon (*ibid.*, § 476), Congo (*ibid.*, § 479), France (*ibid.*, §§ 480–481), New Zealand (*ibid.*, § 484), Nigeria (*ibid.*, § 485), Switzerland (*ibid.*, § 488), United Kingdom (*ibid.*, § 489) and United States (*ibid.*, § 491); Argentina, *Military Junta case* (*ibid.*, § 519); United States, Military Commission at Rome, *Dostler case* (*ibid.*, § 524); United States, Federal Court of Florida, *Ford v. García case* (*ibid.*, § 526); the practice of the United States (*ibid.*, §§ 534–535); the reported practice of Pakistan (*ibid.*, § 530); ICTY, *Delalić case*, Judgement (*ibid.*, § 559)

[36] See, e.g., the military manual of Belgium (*ibid.*, § 475), Germany (*ibid.*, § 482) and Switzerland (*ibid.*, § 488); Germany, Reichsgericht, *Dover Castle case* (*ibid.*, § 523); ICTY, *Delalić case*, Judgement (*ibid.*, § 559).

[37] See, e.g., First Geneva Convention, Article 49, second paragraph (*ibid.*, § 457); Second Geneva Convention, Article 50, second paragraph (*ibid.*, § 457); Third Geneva Convention, Article 129, second paragraph (*ibid.*, § 457); Fourth Geneva Convention, Article 146, second paragraph (*ibid.*, § 457); Hague Convention for the Protection of Cultural Property, Article 28 (*ibid.*, § 458); ICC Statute, Article 25(3) (*ibid.*, § 460); Statute of the Special Court for Sierra Leone, Article 6(1) (*ibid.*, § 463); ICTY Statute, Article 7(1) (*ibid.*, § 467); ICTR Statute, Article 6(1) (*ibid.*, 468); UNTAET Regulation No. 2000/15, Section 14(3) (*ibid.*, § 472); the military manuals of Argentina (*ibid.*, § 473), Canada (*ibid.*, § 477), Italy (*ibid.*, § 483), South Africa (*ibid.*, § 486), Spain (*ibid.*, § 487), United Kingdom (*ibid.*, § 490) and Yugoslavia (*ibid.*, § 493); the statement of Slovenia (*ibid.*, § 531); UN Security Council, Res. 670 (*ibid.*, § 536), Res. 771 (*ibid.*, § 537), Res. 780 (*ibid.*, § 538), Res. 794 (*ibid.*, § 539), Res. 808 (*ibid.*, § 540), Res. 820 (*ibid.*, § 541) and Res. 1193 (*ibid.*, § 542).

superior-subordinate relationship is required, "ordering" implies at least that a superior-subordinate relationship exists *de facto*.[38]

Interpretation

With respect to the actions undertaken by subordinates in accordance with an order to commit war crimes, three situations must be distinguished. First, in case the war crimes are actually *committed*, State practice is clear that there is command responsibility, as stated in this rule. Secondly, when the war crimes are not actually committed but only *attempted*, State practice tends to indicate that there is also command responsibility. The Statute of the International Criminal Court and UNTAET Regulation No. 2000/15 for East Timor specify that there is command responsibility for ordering the commission of a war crime when the crime in fact occurs or is attempted.[39] Some national legislation specifies that a commander who gives an order to commit a crime is guilty, even if the subordinate only attempts to carry out the crime.[40] Thirdly, in case the war crimes are neither carried out nor attempted, a few States do attribute criminal responsibility to a commander merely ordering the commission of a war crime.[41] But most practice indicates no command responsibility in such cases. It is clear, however, that if a rule consists of a prohibition on giving an order, for example, the prohibition on ordering that there be no survivors (see Rule 46), then the commander who gives the order is guilty, even if the order is not carried out.

Rule 153. Commanders and other superiors are criminally responsible for war crimes committed by their subordinates if they knew, or had reason to know, that the subordinates were about to commit or were committing such crimes and did not take all necessary and reasonable measures in their power to prevent their commission, or if such crimes had been committed, to punish the persons responsible.

Practice

Volume II, Chapter 43, Section C.

[38] See, e.g., ICTR, *Akayesu case*, Judgement (*ibid.*, § 553) and *Kayishema and Ruzindana case*, Judgement (*ibid.*, § 554); ICTY, *Kordić and Čerkez case*, Judgement (*ibid.*, § 561); see also Croatia, District Court of Zadar, *Perišić and Others case* ("persons who were in a position to issue orders for combat") (*ibid.*, § 522); ICTY, *Martić case*, Review of the Indictment ("persons who, through their position of political or military authority, are able to order the commission of crimes") (*ibid.*, § 556).

[39] ICC Statute, Article 25(3)(b) (*ibid.*, § 460); UNTAET Regulation No. 2000/15, Section 14(3) (*ibid.*, § 472).

[40] See, e.g., the legislation of Belgium (*ibid.*, § 501), Germany (*ibid.*, § 507), Luxembourg (*ibid.*, § 511) and Netherlands (*ibid.*, § 513).

[41] See, e.g., the legislation of Belgium (*ibid.*, § 501), Luxembourg (*ibid.*, § 511) and Netherlands (*ibid.*, § 513).

Summary

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts.

International armed conflicts

The criminal responsibility of commanders for war crimes committed by their subordinates, based on the commanders' failure to take measures to prevent or punish the commission of such crimes is a long-standing rule of customary international law. It is on this basis that a number of commanders were found guilty of war crimes committed by their subordinates in several trials following the Second World War.[42]

This rule is to be found in Additional Protocol I, as well as in the Statutes of the International Criminal Court and of the International Criminal Tribunal for the Former Yugoslavia.[43] It has also been confirmed in several cases before the International Criminal Tribunal for the Former Yugoslavia.[44]

Military manuals, military instructions and the legislation of a number of States specify the responsibility of commanders for the crimes of their subordinates, including States not, or not at the time, party to Additional Protocol I.[45]

This rule was recalled in resolutions on the conflict in the former Yugoslavia adopted by the UN General Assembly and UN Commission on Human Rights.[46]

Non-international armed conflicts

Practice with respect to non-international armed conflicts is less extensive and more recent. However, the practice that does exist indicates that it is

[42] See, e.g., United Kingdom, Military Court at Wuppertal, *Rauer case* (*ibid.*, § 656); United States, Military Tribunal at Nuremberg, *Von Leeb (The High Command Trial) case* (*ibid.*, § 657) and *List (Hostages Trial) case* (*ibid.*, § 658); United States, Supreme Court, *Yamashita case* (*ibid.*, § 659); IMT (Tokyo), *Case of the Major War Criminals* (*ibid.*, §§ 693–700) and *Toyoda case* (*ibid.*, § 701).

[43] Additional Protocol I, Article 86(2) (adopted by consensus) (*ibid.*, § 569); ICC Statute, Article 28 (*ibid.*, § 574); ICTY Statute, Article 7(3) (*ibid.*, § 581).

[44] See, e.g., ICTY, *Martić case*, Review of the Indictment (*ibid.*, § 705), *Karadžić and Mladić case*, Review of the Indictments (*ibid.*, § 706), *Delalić case*, Judgement (*ibid.*, § 707), *Aleksovski case*, Judgement (*ibid.*, § 708), *Blaškić case*, Judgement (*ibid.*, § 709), *Kunarac case*, Judgement (*ibid.*, § 711), *Kordić and Čerkez case*, Judgement (*ibid.*, § 712), *Krstić case*, Judgement (*ibid.*, § 713) and *Kvočka case*, Judgement (*ibid.*, § 714).

[45] See, e.g., the military manuals of the United Kingdom (*ibid.*, § 613) and United States (*ibid.*, §§ 614–618); see also the practice of Italy (*ibid.*, § 669) and the legislation of Azerbaijan (*ibid.*, § 623), Bangladesh (*ibid.*, § 625), France (*ibid.*, § 633), Italy (*ibid.*, § 635), Luxembourg (*ibid.*, § 638), Netherlands (*ibid.*, § 640), Spain (*ibid.*, § 643), Sweden (*ibid.*, § 645), Philippines (*ibid.*, §§ 604–606).

[46] See, e.g., UN General Assembly, Res. 48/143, 50/192 and 51/115 (*ibid.*, § 680) and Res. 49/205 (*ibid.*, § 681); UN Commission on Human Rights, Res. 1994/77 (*ibid.*, § 683).

uncontroversial that this rule also applies to war crimes committed in non-international armed conflicts. In particular, the Statutes of the International Criminal Court, of the International Criminal Tribunals for the Former Yugoslavia and for Rwanda and of the Special Court for Sierra Leone and UNTAET Regulation No. 2000/15 for East Timor explicitly provide for this rule in the context of non-international armed conflicts.[47] The fact that this rule would also apply to crimes committed in non-international armed conflicts did not occasion any controversy during the negotiation of the Statute of the International Criminal Court.

In the *Hadžihasanović and Others case*, the International Criminal Tribunal for the Former Yugoslavia held that the doctrine of command responsibility, as a principle of customary international law, also applies with regard to non-international armed conflicts.[48] This rule has also been confirmed in several cases brought before the International Criminal Tribunal for Rwanda.[49]

There is national case-law applying this rule to situations outside international armed conflicts. A US Federal Court in Florida applied it in the *Ford v. García case* in 2000, which concerned a civil lawsuit dealing with acts of extra-judicial killing and torture committed in El Salvador.[50] The Ad Hoc Tribunal on Human Rights for East Timor applied it in the *Abilio Soares case* in 2002 in which the Tribunal considered that the conflict in East Timor was an internal one within the meaning of common Article 3 of the Geneva Conventions.[51] In the *Boland case* in 1995, Canada's Court Martial Appeal Court found a superior guilty of having neglected to prevent the death of a prisoner even though he had grounds to fear that his subordinate would endanger the prisoner's life.[52] In the *Military Junta case*, Argentina's Court of Appeal based its judgement on the failure of commanders to punish perpetrators of torture and extra-judicial killings.[53]

Other practice to this effect includes the report of the UN Commission on the Truth for El Salvador in 1993, which pointed out that the judicial instances failed to take steps to determine the criminal responsibility of the superiors of persons guilty of arbitrary killings.[54]

[47] ICC Statute, Article 28 (*ibid.*, § 574); ICTY Statute, Article 7(3) (*ibid.*, § 581); ICTR Statute, Article 6(3) (*ibid.*, § 582); Statute of the Special Court for Sierra Leone, Article 6(3) (*ibid.*, § 577); UNTAET Regulation No. 2000/15, Section 16 (*ibid.*, § 585).

[48] ICTY, *Hadžihasanović and Others case*, Decision on Joint Challenge to Jurisdiction (*ibid.*, § 716). In this respect, the interlocutory appeal filed by the accused was unanimously dismissed by the Appeals Chamber, see ICTY, *Hadžihasanović and Others case*, Decision on Interlocutory Appeal Challenging Jurisdiction in Relation to Command Responsibility, 16 July 2003, Case No. IT-01–47-AR72, § 57 (Disposition on the first ground of appeal).

[49] See ICTR, *Akayesu case*, Judgement (cited in Vol. II, Ch. 43, § 702) and *Kayishema and Ruzindana case*, Judgement (*ibid.*, § 703).

[50] United States, Federal Court of Florida, *Ford v. García case* (*ibid.*, § 661).

[51] Indonesia, Ad Hoc Tribunal on Human Rights for East Timor, *Abilio Soares case* (*ibid.*, § 654).

[52] Canada, Court Martial Appeal Court, *Boland case* (*ibid.*, § 650).

[53] Argentina, Court of Appeal, *Military Junta case* (*ibid.*, § 649).

[54] UN Commission on the Truth for El Salvador, Report (*ibid.*, § 690).

Interpretation

This rule has been interpreted in case-law following the Second World War and also in the case-law of the International Criminal Tribunals for the Former Yugoslavia and for Rwanda. This includes, but is not limited to, the following points:

(i) *Civilian command authority*. Not only military personnel but also civilians can be liable for war crimes on the basis of command responsibility. The International Criminal Tribunal for Rwanda, in the *Akayesu case* in 1998 and in the *Kayishema and Ruzindana case* in 1999, and the International Criminal Tribunal for the Former Yugoslavia, in the *Delalić case* in 1998, have adopted this principle.[55] It is also contained in the Statute of the International Criminal Court.[56] The Statutes of the International Criminal Tribunals for the Former Yugoslavia and for Rwanda and of the Special Court for Sierra Leone refer in general terms to a "superior,[57] as do many military manuals and national legislation.[58]

(ii) *Commander/subordinate relationship*. The relationship between the commander and the subordinate does not necessarily need to be a direct *de jure* one. *De facto* command responsibility is sufficient to occasion liability of the commander. This principle is recognised in various judgements of the International Criminal Tribunals for the Former Yugoslavia and for Rwanda.[59] The Tribunals identified the actual possession of control over the actions of subordinates, in the sense of material ability to prevent and punish the commission of crimes, as the crucial criterion.[60] The same idea is reflected in Article 25 of the Statute of the International Criminal Court.[61]

(iii) *The commander/superior knew, or had reason to know*. Practice confirms that command responsibility is not limited to situations where the commander/superior has actual knowledge of the crimes committed or about to be committed by his or her subordinates, but that constructive knowledge is sufficient. The latter idea is expressed in various sources with slightly different formulations: "had reason to know",[62] "had information which should have

[55] ICTR, *Akayesu case*, Judgement (*ibid.*, § 702) and *Kayishema and Ruzindana case*, Judgement (*ibid.*, § 703); ICTY, *Delalić case*, Judgement (*ibid.*, § 707).

[56] ICC Statute, Article 28 (*ibid.*, § 574).

[57] ICTY Statute, Article 7(3) (*ibid.*, § 581); ICTR Statute, Article 6(3) (*ibid.*, § 582); Statute of the Special Court for Sierra Leone, Article 6(3) (*ibid.*, § 577).

[58] See, e.g., the military manuals of Belgium (*ibid.*, § 588), Netherlands (*ibid.*, § 599), Sweden (*ibid.*, § 610), Uruguay (*ibid.*, § 619) and Yugoslavia (*ibid.*, § 620) and the legislation of Belarus (*ibid.*, § 626), Cambodia (*ibid.*, § 628), Canada (*ibid.*, § 629), Estonia (*ibid.*, § 622), France (*ibid.*, § 633), Germany (*ibid.*, § 634), Netherlands (*ibid.*, § 641), Rwanda (*ibid.*, § 642) and United States (*ibid.*, § 647); see also the draft legislation of Argentina (*ibid.*, § 621), El Salvador (*ibid.*, § 631) and Lebanon (*ibid.*, § 637).

[59] See, e.g., ICTR, *Kayishema and Ruzindana case*, Judgement (*ibid.*, § 703); ICTY, *Delalić case*, Judgement (*ibid.*, § 707), *Aleksovski case*, Judgement (*ibid.*, § 708), *Blaškić case*, Judgement (*ibid.*, § 709), *Kunarac case*, Judgement (*ibid.*, § 711) and *Kvočka case*, Judgement (*ibid.*, § 714).

[60] See, e.g., ICTY, *Delalić case*, Judgement (*ibid.*, § 707), *Aleksovski case*, Judgement (*ibid.*, § 708) and *Kvočka case*, Judgement (*ibid.*, § 714).

[61] ICC Statute, Article 28 (*ibid.*, § 574).

[62] See, e.g., ICTY Statute, Article 7(3) (*ibid.*, § 581); ICTR Statute, Article 6(3) (*ibid.*, § 582) and related case-law (*ibid.*, §§ 702–716); Statute of the Special Court for Sierra Leone, Article 6(3) (*ibid.*, § 577); UNTAET Regulation No. 2000/15, Section 16 (*ibid.*, § 585); Canada, *LOAC Manual*

enabled [the commander/superior] to conclude in the circumstances at the time",[63] the commander/superior "(owing to the circumstances at the time,) should have known",[64] the commander/superior was "at fault in having failed to acquire such knowledge",[65] and the commander/superior was "criminally negligent in failing to know".[66] These formulations essentially cover the concept of constructive knowledge.

For superiors other than military commanders, the Statute of the International Criminal Court uses the language: "consciously disregarded information which clearly indicated".[67] This standard was used by the International Criminal Tribunal for Rwanda in the *Kayishema and Ruzindana case* in 1999 to delineate the meaning of "had reason to know" for non-military commanders.[68]

(iv) Investigation and reporting. Failure to punish subordinates who commit war crimes can result from a failure to *investigate* possible crimes and/or failure to *report* allegations of war crimes to higher authorities. This is set forth in Additional Protocol I and in the Statute of the International Criminal Court.[69] It is also the standard in many military manuals, national legislation, national case-law and other practice.[70] In its final report on grave breaches of the Geneva Conventions and other violations of international humanitarian law committed in the former Yugoslavia, the UN Commission of Experts Established pursuant to Security Council Resolution 780 (1992) recalled this basis of command responsibility.[71]

In its judgement in the *Blaškić case* in 2000, the International Criminal Tribunal for the Former Yugoslavia specified, however, that a commander must give priority, where he or she knows or has reason to know that his or her subordinates are about to commit crimes, to prevent these crimes from being

(*ibid.*, § 591); Cambodia, *Law on the Khmer Rouge Trial* (*ibid.*, § 628); UN Secretary-General, Report on the draft ICTY Statute (*ibid.*, § 685).

63 See, e.g., Additional Protocol I, Article 86(2) (adopted by consensus) (*ibid.*, § 569); the military manuals of Canada (*ibid.*, § 591), Netherlands (*ibid.*, § 599), New Zealand (*ibid.*, § 601), Sweden (*ibid.*, § 610), United Kingdom (*ibid.*, § 613) and United States (*ibid.*, §§ 614–615 and 617–618); Indonesia, Ad Hoc Tribunal on Human Rights for East Timor, *Abilio Soares case*, Indictment and Judgement (*ibid.*, § 654).

64 See, e.g., ICC Statute, Article 28 (*ibid.*, § 574); the military manuals of Australia (*ibid.*, § 587), Belgium (*ibid.*, § 588), Canada (*ibid.*, § 591) and New Zealand (*ibid.*, § 601); United States, Federal Court of Florida, *Ford v. García case*, Judgement (*ibid.*, § 661); the practice of the United States (*ibid.*, §§ 676–677).

65 See, e.g., IMT (Tokyo), *Case of the Major War Criminals* (*ibid.*, § 693).

66 See, e.g., Canada, *Crimes against Humanity and War Crimes Act* (*ibid.*, § 629).

67 ICC Statute, Article 28(b)(i) (*ibid.*, § 574).

68 ICTR, *Kayishema and Ruzindana case*, Judgement (*ibid.*, § 703).

69 Additional Protocol I, Article 87(1) (*ibid.*, § 570); ICC Statute, Article 28(a)(ii) and (b)(iii) (*ibid.*, § 574).

70 See, e.g., the military manuals of Argentina (*ibid.*, § 724), Australia (*ibid.*, §§ 725–726), Benin (*ibid.*, § 727), Canada (*ibid.*, §§ 728–729), Colombia (*ibid.*, § 730), Dominican Republic (*ibid.*, § 731), El Salvador (*ibid.*, § 732), Germany (*ibid.*, § 733), Netherlands (*ibid.*, §§ 734–735), Nigeria (*ibid.*, § 736), Peru (*ibid.*, § 737), Philippines (*ibid.*, § 738), South Africa (*ibid.*, §§ 739–740), Sweden (*ibid.*, §§ 610 and 741), Togo (*ibid.*, § 742) and United States (*ibid.*, §§ 743–744), the legislation of Argentina (*ibid.*, § 621), Canada (*ibid.*, § 729), Egypt (*ibid.*, § 630), Germany (*ibid.*, § 745), India (*ibid.*, § 746), Ukraine (*ibid.*, § 646), United States (*ibid.*, § 647) and the practice of the United States (*ibid.*, §§ 750–752) and Yugoslavia (*ibid.*, § 753).

71 UN Commission of Experts Established pursuant to Security Council Resolution 780 (1992), Final report (*ibid.*, §§ 689 and 754).

committed and that "he cannot make up for the failure to act by punishing the subordinates afterwards".[72]

(v) *Necessary and reasonable measures*. In the *Delalić case* in 1998, the International Criminal Tribunal for the Former Yugoslavia interpreted the term "necessary and reasonable measures" to be limited to such measures as are within someone's power, as no one can be obliged to perform the impossible.[73] With respect to necessary and reasonable measures to ensure the punishment of suspected war criminals, the Tribunal held in the *Kvočka case* in 2001 that the superior does not necessarily have to dispense the punishment but "must take an important step in the disciplinary process".[74] In its judgement in the *Blaškić case* in 2000, the Tribunal held that "under some circumstances, a commander may discharge his obligation to prevent or punish an offence by reporting the matter to the competent authorities".[75]

Rule 154. Every combatant has a duty to disobey a manifestly unlawful order.

Practice

Volume II, Chapter 43, Section D.

Summary

State practice establishes this rule as a norm of customary international law applicable to orders given in both international and non-international armed conflicts.

Manifestly unlawful orders

This rule flows from the duty to respect international humanitarian law (see Rule 139) and is also a corollary of the rule that obeying a superior order is not a defence of a war crime, if the subordinate should have known that the act ordered was unlawful because of its manifestly unlawful nature (see Rule 155). In finding that superior orders, if manifestly unlawful, cannot be a defence, several courts based their judgements on the fact that such orders must be disobeyed.[76]

Besides the practice related to the defence of superior orders, practice specifying that there is a duty to disobey an order that is manifestly unlawful or that would entail the commission of a war crime is contained in the military

[72] ICTY, *Blaškić case*, Judgement (*ibid.*, § 709).
[73] ICTY, *Delalić case*, Judgement (*ibid.*, § 707).
[74] ICTY, *Kvočka case*, Judgement (*ibid.*, § 714).
[75] ICTY, *Blaškić case*, Judgement (*ibid.*, §§ 709 and 757).
[76] See, e.g., Belgium, Court-Martial of Brussels, *Sergeant W. case* (*ibid.*, § 820); Israel, District Military Court for the Central Judicial District and Military Court of Appeal, *Ofer, Malinki and Others case* (*ibid.*, § 825); Netherlands, Special Court in Amsterdam, *Zühlke case* (*ibid.*, § 827); United States, Army Court of Military Appeals, *Calley case* (*ibid.*, § 829).

persons or objects directly. These include, for example, abusing dead bodies;[8] subjecting persons to humiliating treatment;[9] making persons undertake work that directly helps the military operations of the enemy;[10] violation of the right to fair trial;[11] and recruiting children under 15 years of age into the armed forces.[12]

The Appeals Chamber of the International Criminal Tribunal for the Former Yugoslavia, in the interlocutory appeal in the *Tadić case* in 1995, stated that, in order for an offence to be subject to prosecution before the Tribunal, the "violation must be serious, that is to say, it must constitute a breach of a rule protecting important values, and the breach must involve grave consequences for the victim". It then went on to illustrate this analysis by indicating that the appropriation of a loaf of bread belonging to a private individual by a combatant in occupied territory would violate Article 46(1) of the Hague Regulations, but would not amount to a "serious" violation of international humanitarian law.[13] As seen from the examples of war crimes referred to above, this does not mean that the breach has to result in death or physical injury, or even the risk thereof, although breaches of rules protecting important values often result in distress and anxiety for the victims.

Violations entailing individual criminal responsibility under international law

In the interlocutory appeal in the *Tadić case* in 1995, the Appeals Chamber of the International Criminal Tribunal for the Former Yugoslavia stated that

[8] See, e.g., United States, General Military Government Court at Dachau, *Schmid case* (cited in Vol. II, Ch. 35, § 111) (the mutilation of the dead body of a prisoner of war and refusal of an honourable burial amounted to a war crime); see also Australia, Military Court at Wewak, *Takehiko case* (*ibid.*, § 106); Australia, Military Court at Rabaul, *Tisato case* (*ibid.*, § 107); United States, Military Commission at Yokohama, *Kikuchi and Mahuchi case* (*ibid.*, § 109); United States, Military Commission at the Mariana Islands, *Yochio and Others case* (*ibid.*, § 110).

[9] See United States, Military Commission in Florence, *Maelzer case* (cited in Vol. II, Ch. 32, § 297) (concerning prisoners of war who were forced to march through the streets of Rome as in an ancient triumphal parade); Australia, Military Court at Rabaul, *Tanaka Chuichi case* (*ibid.*, § 3883) (concerning Sikh prisoners of war who were made to cut their hair and beards and in one instance forced to smoke a cigarette, acts contrary to their religion); see also ICC Statute, Article 8(2)(b)(xxi).

[10] See France, General Tribunal at Rastadt of the Military Government for the French Zone of Occupation in Germany, *Roechling case* (cited in Vol. II, Ch. 32, § 1861); Netherlands, Temporary Court-Martial of Makassar, *Koshiro case* (*ibid.*, § 1863); United States, Military Tribunal at Nuremberg, *Krauch (I. G. Farben Trial) case* (*ibid.*, § 1870); United States, Military Tribunal at Nuremberg, *Von Leeb (The High Command Trial) case* (*ibid.*, § 1872); see also ICC Statute, Article 8(2)(b)(xv).

[11] See Australia, Military Court at Rabaul, *Ohashi case* (cited in Vol. II, Ch. 32, § 2957); United States, Military Commission at Shanghai, *Sawada case* (*ibid.*, § 2961); United States, Military Tribunal at Nuremberg, *Altstötter (The Justice Trial) case* (*ibid.*, § 2964); see also ICC Statute, Article 8(2)(a)(vi) and (c)(iv).

[12] See ICC Statute, Article 8(2)(b)(xxvi) and (e)(vii).

[13] ICTY, *Tadić case*, Interlocutory Appeal (cited in Vol. II, Ch. 44, § 106).

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